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California Regional Water Quality Control Board Central Valley Region

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11 July 2008

Ms. Pam Hatler
Lake Don Pedro Owners' Association
5182 Fuentes De Flores
La Grande, CA 95329

NOTICE OF APPLICABILITY

WATER QUALITY ORDER NO. 97-10-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, LAKE DON PEDRO OWNERS' ASSOCIATION, ONSITE WASTEWATER TREATMENT AND DISPOSAL SYSTEM, TUOLUMNE COUNTY

The Lake Don Pedro Owners' Association submitted a Report of Waste Discharge (RWD) for coverage of a septic system at Lake Don Pedro Owners' Association Hacienda clubhouse under Water Quality Order No. 97-10-DWQ, *General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (hereafter General Order). The RWD contains all the technical information required; therefore, the RWD is complete. Waste Discharge Requirements Order No. 85-325, which currently regulates the onsite system and discharge to an evaporation pond, will be rescinded.

Based on the information provided in the RWD, the discharge meets the conditions of the General Order. All the requirements contained within the General Order described as applicable to "All Small Domestic Systems," and "Surface Disposal Systems" apply to your onsite wastewater treatment and disposal system (onsite system). You are hereby assigned coverage under General Order No. 97-10-DWQ-R5050.

PROJECT LOCATION

The onsite system is located in Tuolumne County, in Township T2S, Range R14E of Section 32 and 33, MDB&M.

The onsite system is in the Sacramento and San Joaquin River Basin. The *Water Quality Control Plan for the Sacramento and San Joaquin River Basin, Fourth Edition* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

The Regional Water Board's policy regarding the design and operation of onsite system is described in the enclosed *Guidelines for Waste Disposal from Land Developments* (hereafter Guidelines), which are incorporated in the Basin Plan.

PROJECT DESCRIPTION

Lake Don Pedro Owners' Association is replacing the existing septic tank at its clubhouse with a new septic tank. A wastewater volume of 2,000 gallons per day will be discharged from the septic tank into an evaporation pond.

This Notice of Applicability (NOA) regulates the septic system at Lake Don Pedro Owners' Association Hacienda and its discharge of domestic wastewater to land.

FACILITY-SPECIFIC REQUIREMENTS

1. Discharge of wastewater at a location or in a manner different from that described in the RWD is prohibited.
2. The existing onsite system shall be operated as described in the RWD and in accordance with the requirements contained in the General Order and in the enclosed *Guidelines for Waste Disposal from Land Developments*, whichever are more stringent.
3. Prior to initiating discharge to the onsite system, the Discharger shall submit a technical report certifying that the onsite system was constructed in accordance with the RWD and is capable of complying with the General Order and this NOA. The technical report is subject to the requirements of Facility-Specific Requirement 5 and is subject to Executive Officer written approval.
4. As a means for determining compliance with General Order Requirement B.3, the Discharger shall include in each annual report (**due 15 January**) a copy of a log documenting the quantity and method of disposal of all solids (e.g., screenings and sludge) removed from the onsite system during the previous calendar year.
5. All technical reports required herein that involve evaluation, or other work requiring interpretation and proper application of engineering or geologic sciences, shall be prepared by or under the direction of persons registered to practice in California pursuant to California Business and Professions Code, sections 6735, 7835, and 7835.1. To demonstrate compliance with Title 16, California Code of Regulations, sections 415 and 3065, all technical reports must contain a statement of the qualifications of the responsible registered professional(s). As required by these laws, completed technical reports must bear the signature(s) and seal(s) of the registered professional(s) in a manner such that all work can be clearly attributed to the professional responsible for the work.
6. The Discharger shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board) until the NOA is officially terminated.

7. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its supplemental monitoring and reporting requirements, could result in enforcement actions as authorized by provisions of the California Water Code.

If you have any questions regarding this NOA or associated fees, contact Denise Soria at (559) 444-2488.



Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ
Guidelines for Waste Disposal from Land Developments

cc: Tuolumne County Planning Division, Sonora
Ms. Evelyn Rosefield, Accredited Septic Monitoring, Mi Wuk Village w/enclosure

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Reg Measure ID 331383